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File No: EXP202210721

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On February 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against WIZINK BANK, S.A. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on April 17, 2023, the resolution proposal was issued, which is transcribed below:

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Procedure No: EXP202210721 (PS/055/2023)

### PROPOSAL FOR RESOLUTION OF SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On 09/09/22, Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity WIZINK BANK, S.A. with CIF: A81831067 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complaint was filed due to the receipt of commercial emails at his email address: \*\*\*EMAIL.1, after having requested to opt-out.

The complaint submission included the following documentation:

- Screenshot of the Contact Mailbox with the Bank "Online access to WiZink online bank," (\*\*EMAIL.2), dated 05/05/22, where it can be read:

Mailbox [0]

SENT

<>

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2/28

SENT

(...): I do not want to receive commercial communications related to credit, savings, insurance, or similar products.

- Copy of the email sent from the "WiZink" address, \*\*\*EMAIL.3 on 08/09/22, to the complainant's email address \*\*\*EMAIL.1, containing an advertising message:

"Hello A.A.A.: We are writing to remind you of the list of food delivery and takeout businesses where you can earn money back this September. Thanks to your card and WiZink Extra1, the free benefits program associated with it, which is part of your card contract (...):

SECOND: On 11/10/22, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to inform, within one month, about what was stated in the complaint.

THIRD: On 15/11/22, a response letter was received from the respondent, in which it is stated, among other things, the following:

"The complainant subscribed to a WIZINK PLUS credit card contract with WIZINK BANK S.A.U. on June 1, 2020. We attach as DOCUMENT NUMBER 3, a copy of the mentioned contract. We want to

emphasize that in the aforementioned contract, clause 19 states that this card has a Bonus Program for certain purchases made by the customer.

This program is currently called "Wizink Extra" and consists of WIZINK reimbursing a percentage of the purchase value each time the customer makes purchases with the card at the Participating Merchants of said program.

As indicated by the complainant in his complaint, WIZINK received the request to opt-out of receiving commercial communications through the customer area on May 4, 2022, and subsequently proceeded to respond confirming that this request would be executed within the timeframe established by Data Protection regulations, with a message displayed in his customer area, and a copy of which we provide as DOCUMENT NUMBER 4; likewise, on May 4, 2022, WIZINK received a new request to opt-out of receiving commercial communications through email, SMS, and phone channels and proceeded to respond on May 5, 2022, confirming that his request had been executed within the timeframe established by Data Protection regulations, as can be seen in DOCUMENT NUMBER 5.

In any case, it should be clarified that WIZINK had recorded the complainant's opt-out from receiving commercial communications from the moment of signing the contract where he already communicated his opposition.

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3/28

As recorded on page number 25: Basic Information on Personal Data Protection of the signed contract provided as DOCUMENT NUMBER 3.

Regarding the claimant's complaint, where it is specified that WIZINK has sent him "commercial emails to his email address, after having requested his right to object and having received a satisfactory response," and he provides 10 emails for this purpose, among which is the one sent on September 8, 2022, with the subject: "In September, recover money on your food delivery orders," we have been able to verify that none of them are commercial communications, but rather informational communications.

We will now detail the purpose and content of the aforementioned emails in the order they appear in the document provided by the claimant:

Communication of September 8, 2022, subject: "In September, recover money on food delivery orders." We provide as DOCUMENT NUMBER 6 a copy of the communication sent; as can be seen, it is an informational communication related to the bonus program associated with the credit card, where the list of food delivery and takeout businesses is provided, in which customers can benefit from said bonus program "WiZink Extra."

Communication of August 26, 2022, subject: "We help you protect yourself from cyber scams." We provide as DOCUMENT NUMBER 7 a copy of the communication sent with the purpose of helping our customers prevent fraud and to enable them to identify cases they may receive from cybercriminals (phishing, hackers, vishing, etc.) which include WIZINK recommendations regarding internet security so that they do not provide any data to such cybercriminals.

Communication of August 9, 2022, subject: "New businesses joined to WIZINK EXTRA." We provide as DOCUMENT NUMBER 8 a copy of the communication; as can be seen, it is an informational communication related to the bonus program associated with the credit card where the list of new business incorporations is provided, in which customers can benefit from said bonus program "WiZink Extra."

Communication of July 28, 2022, subject: "We help you protect yourself from cyber scams." We provide as DOCUMENT NUMBER 9 a copy of the communication sent with the purpose of helping our customers prevent fraud and to enable them to identify cases they may receive from cybercriminals (phishing, hackers, vishing, etc.) which include WIZINK recommendations regarding internet security so that they do not provide any data to such cybercriminals. Customers are informed that the Tax Agency will never request banking data via email, SMS, or phone call.

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Following the aforementioned, we would like to highlight that we have been able to verify that this entity has not sent commercial communications to the claimant, as it has exclusively sent informative communications based on the credit card contract that is currently in force with our entity, for the prevention of fraud and also for compliance with the legal obligations regarding data protection for which we are responsible for data processing.

#### THIRD. - CAUSES THAT MOTIVATED THE CLAIM.-

The facts indicated by the claimant in their complaint, which therefore motivate it, are as follows, as derived from the information request from the AEPD, which is reproduced below: "Files a complaint for the receipt of commercial emails at their email address: after having requested opposition and having received a satisfactory response from the party being claimed against.

Along with the complaint document, a copy and headers of an email dated 08/09/2022, with the subject: "In September, recover money on your home food orders" are provided. Additionally, a screenshot of the inbox of their email is included, showing the receipt of 10 emails between 04/05/2022 and 08/09/2022. A screenshot of an opposition request dated 05/05/2022, sent through online banking ("Customer Area"), where it is marked as "sent," is also provided. The claimant states that the party being claimed against accepted their opposition request through a regular letter that has been lost.

Regarding these allegations and as has been evidenced in this document, WIZINK Bank, S.A.U. has acted in accordance with the current regulations on data protection at all times, not sending commercial communications as the communications that have been sent are of an informative nature based on the credit card contract that is currently in force with our entity, for the prevention of fraud and also for compliance with the legal obligations regarding data protection for which we are responsible for processing their data.

#### FOURTH.- MEASURES ADOPTED BY WIZINK,

upon receiving the information request from the Data Protection Agency, immediately proceeded to investigate the facts, verifying that this Entity took the following measures:

WIZINK has carried out the necessary verifications and was able to confirm that it had registered the opposition to receiving commercial communications from the moment the contract was signed, where the claimant already communicated their opposition to us.

As recorded on page number 251 of the Basic Information on Personal Data Protection of the signed contract provided as DOCUMENT NUMBER 3, a screenshot of the WIZINK system is attached as evidence where the registration of the opposition to receiving commercial communications appears. Reviewing the requests for the exercise of data protection rights received from the claimant. After the verifications carried out, it is confirmed that two requests for opposition to receiving commercial communications were received on May 4, 2022, requests that were managed and responded to within the time frame established by the Data Protection regulations.

Communication dated July 20, 2022, subject: "Merger of WiZinK with Aplázame and Lendrock"

Attached as DOCUMENT NUMBER 10 is a copy of the communication sent to fulfill our legal obligations regarding data protection, informing them of the changes made to WIZINK's Data Protection Policy as a result of the merger of the entities Aplázame and Lendrock into WIZINK S.A.U.

Communication dated June 30, 2022, subject: "Smishing Cybercriminals attack with SMS" Attached as DOCUMENT NUMBER 11 is a copy of the communication sent to help our clients prevent fraud and to enable them to identify cases they may receive from cybercriminals (phishing, hackers, vishing, etc.) that include recommendations from WIZINK regarding internet security so that they do not provide any data to such cybercriminals.

Communication dated June 20, 2022, subject: "Supermarkets DIA joins WIZINK EXTRA" Attached as DOCUMENT NUMBER 12 is a copy of the communication sent, which is an informative communication related to the bonus program associated with the credit card, informing about the adhesion to the "WiZinK Extra" bonus program of a new merchant.

Communication dated June 10, 2022, subject: "Beware of telephone scams, never give your data"  
Attached as DOCUMENT NUMBER 13 is a copy of the communication sent to help our clients prevent fraud and to enable them to identify cases they may receive from cybercriminals (phishing, hackers, vishing, etc.) that include recommendations from WIZINK regarding internet security so that they do not provide any data to such cybercriminals.

Communication dated May 30, 2022, subject: "Phishing the preferred attack of cybercriminals"  
Attached as DOCUMENT NUMBER 14 is a copy of the communication sent to help our clients prevent fraud and to enable them to identify cases they may receive from cybercriminals (phishing, hackers, vishing, etc.) that include recommendations from WIZINK regarding internet security so that they do not provide any data to such cybercriminals.

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6/28

Communication dated May 4, 2022, subject: "Do Not Let Cyberbullies Ruin Your Income Tax Campaign" We provide as DOCUMENT NUMBER 15 a copy of the communication sent to help our clients prevent fraud and to enable them to identify cases they may receive from cybercriminals (phishing, hackers, vishing, etc.) which include recommendations from WEZINK regarding internet security so that they do not provide any data to such cybercriminals.

In this communication, it is reminded that WIZINK has not sent commercial communications to the claimant, as it has only sent informative communications based on the credit card contract that is currently in force with our entity, for the prevention of fraud and also for compliance with legal obligations regarding data protection.

Notwithstanding the above, while the credit card contract signed between the claimant and WIZINK remains in force, WIZINK will continue to process the claimant's data for the purpose of managing the contract, fulfilling our legal obligations, and detecting or preventing fraud.

In conclusion, it has been established that WIZINK has not sent commercial communications to the claimant and that it has only sent informative communications based on the credit card contract that is currently in force with our entity, for the prevention of fraud and also for compliance with obligations regarding data protection, having acted as Data Controller, with WIZINK having complied at all times with the provisions of the applicable data protection regulations.

FOURTH: On December 9, 2022, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint filed, in accordance with Article 65 of the LPDGGDD, upon appreciating possible rational indications of a violation of the rules within the scope of the competencies of the Spanish Agency for Data Protection.

FIFTH: On February 22, 2023, the Director of the Spanish Agency for Data Protection initiated sanctioning proceedings against the entity complained of, upon appreciating reasonable indications of a violation of the provisions of Article 21 of the LSSI, for sending an advertising email to the claimant after he opposed receiving electronic communications of this type.

SIXTH: On March 7, 2023, the entity complained of submitted a written statement of allegations to this Agency, in which, among other things, it states the following:

**FIRST. – PRODUCT CONTRACTED BY THE CLAIMANT INCORPORATES "WIZINK EXTRA" BONUS PROGRAM AND FREE INSURANCES**

First of all, it is necessary to clarify that the credit card product offered by WIZINK to its clients is a payment instrument issued by WIZINK in the name of the claimant so that he can make purchases at merchants affiliated with the VISA/Mastercard Systems without having to pay in cash and withdraw money from ATMs, being able to make transfers charged to the card account within the limits established at any given time, and request certain deferred payment services.

In addition, all WiZink credit cards automatically include:

- A bonus program called "WiZink Extra" under which WiZink pays a percentage of the purchase value when the Client makes purchases with his card at merchants affiliated with the program.

The client can view in the WiZink App the purchases made with his card as well as the amounts he has

accumulated with each purchase, which WIZINK will pay to the client monthly and will include in the bank statement of his card. For these purposes, the applicable rules for the "WiZink Extra" program are available on the WiZink website (\*\*URL.1). Attached as DOCUMENT NUMBER 1 are the operational rules that can be downloaded from the website.

Furthermore, as previously indicated, this program is available simply by having a credit card contracted with WIZINK and having downloaded and updated the WiZink App as indicated on the website in the section "Resolve any doubts you may have about WiZink Extra." Certain free insurance coverages can be identified on the WiZink website.

Consequently, <>, while having a WiZink credit card and having therefore signed the corresponding card contract with WIZINK, and having downloaded the app, was a beneficiary of the "WiZink Extra" bonus program as well as certain free insurance coverages. Additionally, clause 19 of the credit card contract of WIZINK signed by the claimant, already provided by my represented party in this file, mentions the bonus program that the client has available.

Therefore, in execution of what is established in the aforementioned contract, my represented party has sent communications regarding the "WiZink Extra" Program for informative purposes to <>. In fact, after the verifications carried out, the claimant was registered in the "WiZink Extra" Program so that through his APP he had available all the purchases made with the WIZINK card as well as the bonuses he could have enjoyed in case of making purchases at the affiliated merchants. Attached as DOCUMENT NUMBER 2 is a copy of a fictitious example to show what WiZINK clients can view about these bonuses from their APP.

SECOND. – INFORMATIVE NATURE OF THE COMMUNICATIONS SENT TO THE CLAIMANT.

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8/28

In relation to the communications sent via email to the <> that are the subject of the claim in this file, my client states that all of them were of an informative nature, as specifically indicated in the left header of each of the communications with the label "Informative Communication," as can be verified by reviewing DOCs 6 to 15 submitted by my client in response to the claim received from the AEPD on 10/11/22.

For these purposes, my client considers it relevant to clarify the following:

Indeed, on September 9, 2022, WIZINK sent the claimant a communication regarding the "WiZink Extra" Program in which they were enrolled, to remind them of the list of participating merchants. This communication is not intended to commercially promote any WiZink product or to encourage them to contract a new product; rather, it is a generic communication about the program associated with the card that the WiZink client has active. This communication is not personalized because my client's only aim is to inform about the new merchants participating in the program. It is important to highlight that at the end of the email, data protection information related to the Program is included, which is reproduced below. Additionally, in the data protection section of the WIZINK website [www.wizink.es](http://www.wizink.es), the document "Data Protection Information related to the loyalty program 'WiZink Extra' of the WiZink card" is published, as provided to the claimant in the response sent by this entity on November 4, 2022, in DOC 2.

Regarding the following text included on page 8 of the initiation agreement of this sanctioning procedure: "It can also be noted that the email sent to the claimant on 03/11/22 (Document No. 2, submitted by the responding entity) contains messages clearly of a commercial nature," we would like to clarify that the DOCUMENT NUMBER 2 referred to by the AEPD is NOT A COPY OF AN EMAIL SENT BY WIZINK TO THE CLAIMANT, BUT RATHER A SCREENSHOT OF THE INFORMATION OF THE "WIZINK EXTRA" PROGRAM THAT WAS PUBLISHED ON THE WIZINK WEBSITE, [WWW.WIZINK.ES](http://WWW.WIZINK.ES), AS OF NOVEMBER 3, 2022. (The date indicated in the left header of DOCUMENT NUMBER 2 is the date of printing). This information was included in the response sent to the claimant on November 4, 2022, as part of DOCUMENT 2.

We reproduce below the paragraph included in this response regarding this point (...).

Therefore, for the purposes of this procedure, IT IS NOT TRUE THAT MY CLIENT SUBMITTED A COPY OF A COMMUNICATION DATED NOVEMBER 3, 2022, AS ON THAT DATE WIZINK DID NOT SEND ANY COMMUNICATION. As previously indicated, what my client provided to the claimant is a copy of what appears published on the WiZink website regarding the "WIZINK EXTRA" program, which was printed on November 3, 2022, to be included in the response to the claimant.

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9/28

#### THIRD.- GOOD FAITH AND DILIGENCE OF WIZINK

Although, as previously indicated, the communications sent by WiZink to the claimant regarding the "WiZink Extra" Program had a purely informative purpose based on the execution of the subscribed card contract, in light of the complaint filed by the <> with the AEPD, where their desire not to receive them is clearly expressed, my client took the necessary measures to refrain from sending any further communications related to this program, even though they remained enrolled in it.

#### FOURTH.- INTERPRETATION OF THE CONCEPT OF COMMERCIAL COMMUNICATION

The LSSI defines in point f) of its Annex commercial communications as "Any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in an industrial, artisanal, or professional activity. For the purposes of this Law, data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, shall not be considered commercial communication, nor shall communications related to the goods, services, or image offered when they are produced by a third party and without economic consideration."

Unlike what the AEPD has interpreted in the present file by stating that "it is evident" that WIZINK sent the claimant commercial or advertising messages for the purposes of the LSSI, the communication sent to the claimant regarding the "WiZink Extra" bonus program included in their card does not aim to promote the contracting of any product or service of the Bank, nor does it involve any economic consideration, but rather aims to inform the client in accordance with the card contract about which merchants are affiliated with said program.

In this regard, it is noteworthy that the AEPD considers the communication sent to the claimant regarding the "WiZink Extra" program, which is the subject of this sanctioning file, to be commercial, when it is made under the umbrella of the card contract signed with the <>, as established in that contract by indicating that the card incorporates a bonus program "WiZink Extra," and when the interpretation that the Audiencia Nacional has on this, in the ruling issued on May 16, 2019, Rec. 493/2017, where it analyzes the case of a client who has contracted a roadside assistance service for a breakdown of their vehicle, which to complete the coverage, said assistance is associated with a service consisting of sending them an SMS that says: "from Autoclub Mutua we offer you to rent a car from 21.30 euros per day. Call us at 915578205" CONSIDERING THAT IT IS NOT COMMERCIAL FOR THE PURPOSES OF ARTICLE 21 OF THE LSSI, indicating the following:

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"(...) this Chamber concludes that it is established that the sending of the SMS referred to so many times is not subject to the prohibition set forth in Article 21 of the LSSI, therefore no sanction should be imposed on the appellant company, with the annulment of the resolution of the AEPD being contested here."

It should be noted that in the case of the present procedure opened against WIZINK, my client is NOT OFFERING ANY PRODUCT THAT REQUIRES CONTRACTING BY THE CLIENT, unlike the previously referenced case from the National Court where a rental car is offered as part of the assistance service contracted with their entity, but rather they are being informed about the "WiZink

Extra” Program that incorporates their card and in which they are registered.

Furthermore, it is worth mentioning the criterion maintained by the AEPD in the resolution regarding file No: E/00036/2021 where it archives the sanctioning procedure opened, considering that the SMS received by the complainant are not commercial communications about products or services of the complained entity (Vodafone) as that entity stated, but rather generic communications about the functionalities of the services available to customers to manage their services, such as the My Vodafone App, in execution of the contract maintained with the complainant, for which the complained entity (Vodafone) can communicate with its customers to send necessary information for the correct provision of the service. The complained entity also indicates that these “SMS are informative, not advertising, and this is indicated in the header of such emails with the reference ‘VF Info.’ If one looks at the content of these communications, they inform about the availability of the latest version of the customer management App My Vodafone so that customers have all the updates of the App available, which may mean an improvement in its security or the availability of new functionalities.”

For these purposes, and for better understanding, the content of the SMS that the complained entity sent to the complainant in this case is reproduced below, which the AEPD ultimately considered did not qualify as commercial communication:

- “VF Info: If you can, collaborate with the Red Cross Plan RESPONDE against COVID-19. Send [sic] CRE to 28052 and the full amount [sic] (1.20€) will be sent to the Red Cross.”
- “VF Info: The cold, another threat to refugees. Help supply blankets and heaters by sending ACNUR to 28052 and the full amount [sic] (1.20€) will be sent to ACNUR.”
- “VF Info: We inform you that RadarCOVID, the official app of the Government of Spain to help prevent the spread [sic] of the coronavirus (COVID-19) does not consume the data from your plan. If you still [sic] do not have it, download it [sic] here [sic]: go.vodafone.es/radarcovid-android.”
- “VF Info: Do you want to continue using the My Vodafone App? You need to download the latest [sic] version [sic]! Do it before 13/11: \*\*\*URL.2”

In view of these SMS, the AEPD concluded in this case that: “...the SMSs received by the complainant do not constitute, as stated by the complainant...

11/28

Claimed, advertising or promotional messages that may be considered a commercial communication from the entity VODAFONE ESPAÑA, S.A.U., as can be deduced from both the text and the heading (VF Info), and proceeded to archive the proceedings of the file without sanctioning VODAFONE.

#### FIFTH.- NON-APPLICATION OF THE LAW ON INFORMATION SOCIETY SERVICES

It should be emphasized that, said in strict terms of defense and with the utmost respect, the AEPD SHOULD NOT apply the LSSI IN THIS CASE, which directly implies that the sanction sought for the ALLEGED commission of an infringement of Article 21 of said regulation is not legally justified.

This is based on the definitions included in the Annex of the aforementioned regulation:

“For the purposes of this Law, the following shall be understood as: a) ‘Information society services’ or ‘services’: any service normally provided for remuneration, at a distance, by electronic means and at the individual request of the recipient. The concept of information society service also includes services that are not remunerated by their recipients, insofar as they constitute an economic activity for the service provider. The following are considered information society services, among others, and provided they represent an economic activity: 1. The contracting of goods or services by electronic means. 2. The organization and management of auctions by electronic means or of virtual markets and shopping centers. 3. The management of online purchases by groups of people. 4. The sending of commercial communications. 5. The provision of information by telematic means. Services that do not meet the characteristics indicated in the first paragraph of this section shall not be considered information society services...”

Therefore, it is understood that the application of the aforementioned regulation is not pertinent given that the communication of the “WiZInk Extra” Program does not meet any of the characteristics described in the annex of the LSSI.

With a similar criterion, the AEPD has interpreted in file E/07708/2019 regarding the sending of the following SMS by the claimed entity: “Hello, I am B.B.B. I recommend you to sell your motorcycle

\*\*\*URL.3”, that with this SMS sent, no service of the law on information society is provided. Furthermore, in said resolution, it is indicated that the communication sent does not contain commercial information because the link does not lead to a possible sale of any kind of product or service. On the contrary, the page to which it redirects serves to assist those who are genuinely interested in selling their vehicle regarding relevant aspects such as appraisal value, tax value, the advertisement.

And in accordance with the aforementioned, the AEPD concludes that: “In light of the norms transcribed in the preceding Foundation, the documentation in the file reveals that the electronic message received by the complainant was not a commercial communication and that through it no information society service was provided.”

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12/28

#### SIXTH.- THERE ARE NO AGGRAVATING FACTORS TO GRADUATE THE SANCTION

In the present case, and in accordance with the provisions of Article 40 LSSI, the aggravating criterion referred to by AEPD in the resolution of the initiation of sanctioning procedure does not apply based on the following reasons:

- It is not true that WIZINK sent communication to the complainant on 03/11/2022 as evidenced in the second allegation of this document. As can be seen in the response that WIZINK provided to the complainant on 04/11/2022, my client attached as Document number 2 a printout made on 03/11/2022 of the content published on WIZINK's website regarding the “WiZINK Extra” bonus program as well as the data protection information published in the data protection section of WIZINK's website for this program. Therefore, the printout from the website shows the date of 03/11/2022 in the header, which was the day the content was printed from the website and not a communication. Notwithstanding the above, if AEPD refers to the following links: (i) \*\*\*URL.1 as well as (ii) [www.wizink.es/public/informacion-legal/proteccion-de-datos](http://www.wizink.es/public/informacion-legal/proteccion-de-datos), it will see that the content matches DOCUMENT NUMBER 2 which is part of the response sent on 04/11/2022 to the client as a result of the complaint received from AEPD.

- Likewise, it should be noted that while the communications sent to the complainant by my client since 05/05/2022 had an informative content, it is also true that WIZINK, upon becoming aware of the complaint filed by our client with AEPD, and proactively considering the client's wishes, took the necessary measures to ensure that the complainant would not receive any further communication regarding the “WiZINK Extra” program, despite remaining enrolled in it. Regarding any potential harm caused to the complainant, it has not been demonstrated that any harm has resulted from informing him of a bonus program that incorporates the card with the aim of keeping him informed about the merchants participating in said program.

#### SEVENTH.- SUBSIDIARILY, THE PRESCRIPTION OF THE OFFENSE ATTRIBUTED TO WIZINK IS INVOKED

As previously established, WIZINK has complied in this case with the provisions of Article 21 of the LSSI, having sent the complainant communications by email with exclusively informative content. Notwithstanding the above, the infraction that AEPD attributes to my client is classified as a minor infraction according to the provisions of Article 38.4.d) of the LSSI, which qualifies as such “the sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infraction.”

While my client requests the filing of the proceedings having demonstrated that it has complied at all times with the provisions of said regulation, in the event that AEPD continues to interpret that my client should be attributed with a minor infraction of the LSSI, given that the aforementioned infraction prescribes after six months, it requests that it be considered subsidiarily that the alleged infraction of Article 21 LSSI has prescribed after the lapse of the 6 months provided for, which are counted from the date on which, in AEPD's interpretation, WIZINK committed the infraction, and therefore the case



should be archived.

That is to say, considering that the prescription period for the same is six (6) months and the Agreement to initiate the Sanctioning Procedure was notified to this party on 23 February 2023, such infractions are completely prescribed as more than six (6) months have elapsed since their alleged commission.

In light of the above, I REQUEST THE SPANISH AGENCY FOR DATA PROTECTION to accept this written statement of allegations as presented in time and form, to admit it, and, after the appropriate procedures, to agree to archive the referenced file, rendering the sanctioning procedure initiated against WIZINK ineffective.

Subsidiarily to the main request, if the Instructor does not grant the request, the aggravating criterion for the graduation of the sanction in accordance with Article 40 LSSI and the sixth allegation of this document should not be applied, and WIZINK's proactive action reflecting the client's expressed wish mentioned in the previous sixth allegation should be considered as a mitigating factor, and in that case, the amount of the proposed sanction for the minor infraction of LSSI should be reduced. FIRST OTHER REQUEST: this party expresses its willingness to remedy any defects that may have occurred in this document. I REQUEST: that the previous statement be considered made for the appropriate effects.

From the actions taken in this procedure and the documentation in the file, the following has been established:

#### PROVEN FACTS

First: The complainant indicates in his complaint that he continues to receive advertising emails from the financial entity WIZINK after having requested to oppose the receipt of such emails on 05/05/22 and having received a satisfactory response from the entity:

- "Screenshot of the Contact Inbox with the Bank: Online access to WIZINK's online bank,"  
(\*\*EMAIL.2), dated 05/05/22:

Inbox [0]

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SENT

(...): I do not want to receive commercial communications related to credit, savings, insurance, or similar products.

Second: Along with the complaint, a copy and header of an email dated 08/09/22 is attached, with the subject: "In September, recover money on your food delivery orders." Additionally, a screenshot of the inbox of the complainant's email is included, showing the receipt of 10 emails between 04/05/22 and 08/09/22.

Third: In the email sent to the complainant on 08/09/22, the following messages can be read, clearly with a commercial tone:

"In September, recover money on your food delivery orders"

We are writing to remind you of the list of food delivery merchants where you can recover money this September. Thanks to your card and WiZink Extra1, the free benefits program associated with it, which is part of your card contract.

GLOVO

3% discount

Maximum refund per purchase: €3

Refund threshold: €5

HEALTHY POKE

15% discount

Maximum refund per purchase: €3

Refund threshold: €5

MALVON

10% discount

Maximum refund per purchase: €2.5

Refund threshold: €5

Check here for participating merchants

MISS SHUSHI

10% discount

Maximum refund per purchase: €4

Refund threshold: €8

Check here for participating merchants

(...)

The date of your enrollment in the program, and therefore the moment when you will start accumulating money from your purchases (or have started to accumulate it) was the date of your first access to the WiZink App from 18/11/21.

Each merchant defines a % of refund and a maximum per purchase, the type of purchases to which it applies (physical, web, or app), and a refund threshold or direct discount as the merchant decides.

Over time, new merchants may be added, and others may stop appearing, so do not forget to check the WiZink App for the specific current conditions of each merchant.

The logos included in this communication are the property of their respective owners. (...)

Fourth: In the email sent to the complainant on 03/11/22, (Document No. 2, submitted by the responding entity to this Agency in its letter dated 15/11/22), it contains messages clearly with a commercial tone:

DOCUMENT NUMBER 2

100,000

“Recover Money with WiZink Extra”

For your purchases with your WiZink at the merchants participating in your card's benefits program and recover the money

“DIA”

“PC Componentes”

“GLOVO”...

With each purchase you make at these merchants, you accumulate a % of your spending, and when the sum of those % reaches a specific amount, which we call the threshold and is different for each merchant, we will refund it to your card.

Please note that some merchants do not have a threshold, so for each purchase, we will directly refund the % of the spending to your card.

<>

Do you want to enjoy WiZink Extra now?

If you are not a WiZink customer <> you can choose the best card that suits your needs. Apply online in just 5 minutes.

<>

“To this Party, everyone is invited”

(...)

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16/28

I-

Competence

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law

34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

II-

Response to the allegations presented.

Prior to examining the substantive issue, it is necessary to respond to the allegations presented regarding the initiation of the file:

a).- Regarding the assertion that the “Product contracted by the complainant includes a ‘wizink extra’ bonus program and free insurance”:

In this case, the functionalities of the credit card offered by WIZINK to its customers and the advantages or programs it incorporates are not being examined, as the matter at hand seeks to clarify whether the entity in question sent commercial communications to the complainant without express authorization, that is, after the complainant expressed their desire to no longer receive commercial communications from the financial entity.

According to the complainant, after notifying WIZINK of their desire to stop receiving commercial communications on 05/05/22 and having received a response “acknowledging receipt” from the entity, they report that they continued to receive advertising emails from the financial entity WIZINK. To corroborate this, they present a copy and header of an email dated 08/09/22, with the subject: “In September, recover money on your home delivery orders,” as well as a screenshot of their email inbox, showing the receipt of 10 emails sent between 04/05/22 and 08/09/22 from the financial entity WIZINK.

For its part, the financial entity provides this Agency with the email sent to the complainant on 03/11/22 (Document No. 2, submitted by the entity to this Agency in its letter dated 15/11/22), containing a message with a clearly advertising, commercial, or promotional nature.

Regarding the allegations presented asserting the “informative nature of the communications sent to the complainant.”

Regarding the allegations presented by the entity in question indicating that “all had an informative nature and this was specifically indicated with the label ‘Informative Communication,’” it should first be noted that, in the annex of the LSSI, “Commercial communication” is defined in point f) for the purposes of application of the Law as:

“Any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity.”

Moreover, according to the definition by the RAE, “commercial communication” is defined as that which aims to “promote the supply of goods or the provision of services, including real estate, rights, and obligations.”

Well, as recognized by the entity in question on 08/09/22, a communication regarding the “WiZink Extra” Program was sent to the complainant. However, it maintains that this communication was not intended to “commercially promote any WiZink product or encourage the contracting of a new product,” but rather it was a generic communication about the program associated with the card that the complainant had active, and it claims that its sole purpose was to “inform about the new merchants joined to the program.”

In the case at hand, in the copy of the email sent from the “WiZink” address on 08/09/22 to the complainant's email address, the following message can be read:

“Hello A.A.A.: We are writing to remind you of the list of home delivery and takeout merchants where you can recover money this September. Thanks to your card and WiZink Extra1, the free benefits program associated with it, which is part of your card contract (...):”

And then it listed up to 12 “logos” of merchants or services with their respective promotions, such as “GLOVO; 3% discount, Maximum reimbursement per purchase: €3; Reimbursement threshold: €5; HEALTHY POKE: 15% discount; Maximum reimbursement per purchase: €3; Reimbursement threshold: €5...”

Regarding DOCUMENT NUMBER 2 referred to by the AEPD, in which the entity states that “it is not a copy of an email sent by WiZink to the complainant, but rather a screenshot of the information about

the 'WiZink extra' program that was published on the wizink website," we must recall that, in the letter sent by the financial entity to this Agency on 15/11/22, it is stated verbatim as follows:

"A complete copy of the response sent to the <> at the email address provided in the credit card contract signed by the complainant is attached as DOCUMENT NUMBER 1 (...). Note that this document includes a copy of the email sent to the complainant with the response, as well as a copy of the email sent to the complainant with the password.

A justification of having sent this response by email with acknowledgment of receipt is attached as DOCUMENT NUMBER 2."

And in the document marked by the financial entity as "DOCUMENT NUMBER 2" sent to this Agency, the following can be read verbatim:

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18/28

"Recover Money with WiZink Extra"

For your purchases with your WiZink at the merchants participating in the benefits program of your card and recover money

"DAY"

"PC Components"

"GLOVO"...

With each purchase you make at these merchants, you accumulate a % of your spending, and when the sum of those % reaches a specific amount, which we call the threshold and is different for each merchant, we will refund it to your card.

Please note that some merchants do not have a threshold, so for each purchase, we will directly refund the % of the spending to your card.

<>

Do you want to enjoy WiZink Extra now?

If you are not a WiZink customer <>, you can choose the best card that suits your needs. Apply online in just 5 minutes.

<>

"To this party, everyone is invited"

(...)

Having both emails, clearly, information directed at the promotion, direct or indirect, of the image or goods or services of companies that carry out a commercial, industrial, artisanal, or professional activity, as defined in the regulation.

c).- On the "interpretation of the concept of commercial communication"

The entity being claimed mentions in this point section f) of the annex of the LSSI, in which

"Commercial communication" is defined as:

any form of communication aimed at the promotion, direct or indirect, of the image or goods or services of a company, organization, or person that carries out a commercial, industrial, artisanal, or professional activity, and indicates that WIZINK sent the claimant commercial or advertising messages about the "WiZink Extra" bonus program included in their card, not aimed at promoting the hiring of any product or service of the Bank, nor does it involve an economic consideration but aims to inform the customer according to the card contract about which merchants are participating in said program.

At this point, we would like to remind you that in the email sent to the claimant on 08/09/22, after the entity was requested not to send them commercial communications again, the following can be read, verbatim:

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19/28

"In September, recover money on your home food orders"

We are writing to remind you of the list of home food merchants where you can recover money this September. Thanks to your card and WiZink Extra1, the free benefits program associated with it, which is part of your card contract.

GLOVO

3% discount

Maximum refund per purchase: €3

Refund threshold: €5

HEALTHY POKE

15% discount

Maximum refund per purchase: €3

Refund threshold: €5

MALVON

10% discount

Maximum refund per purchase: €2.5

Refund threshold: €5

Check here for participating merchants

MISS SHUSHI

10% discount

Maximum refund per purchase: €4

Refund threshold: €8

Check here for participating merchants

(...)

The date of your registration in the program, and therefore the moment when you will start accumulating money for your purchases (or have started to accumulate it) was the first access you made to the WiZink App from 18/11/21.

Each merchant defines a % of refund and a maximum per purchase, the type of purchases to which it applies (physical, web, or app), and a refund threshold or direct discount as the merchant decides.

Over time, new merchants may be added, and others may stop appearing, so do not forget to check the specific current conditions of each merchant in the WiZink App.

The logos included in this communication are the property of their respective owners. (...)

As is known, the sending of commercial communications by electronic means is regulated by Article 21 of Law 34/2002, of July 11,

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20/28

of Information Society Services and Electronic Commerce, whose subsection 1 clearly states that:

"It is prohibited to send advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients."

This rule would only be exempted in the case of a prior contractual relationship and "provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client," as established in the first paragraph of subsection 2 of the provision.

This provision was amended by Law 32/2003, of November 3, General Telecommunications Law, as a result of the transposition of Directive 2002/58/EC of the European Parliament and of the Council of July 12, 2002, concerning the processing of personal data and the protection of privacy in the electronic communications sector (Directive on Privacy and Electronic Communications).

This Directive introduced the principle of "opt-in" throughout the European Union, that is, the need to obtain prior consent from the recipient for sending emails for commercial purposes. Thus, any sending

of advertising or promotional communications by email or other equivalent electronic communication means is subject to the prior provision of consent, unless there is a prior contractual relationship and the subject does not express their will to the contrary.

In this way, the aforementioned Article 21 operates as a limit that must be adhered to in all cases when marketing or advertising actions are carried out through electronic means, establishing for these cases the general rule of the express consent of the interested party for their execution unless such actions refer to “products or services of its own company that are similar to those initially contracted with the client” and the subject does not express their will to the contrary.

In this same sense, the jurisprudence has been highlighting the application of the principle of specialty, as resolved by the National Court in Judgment of January 9, 2009, in case 97/2007, in which the fourth legal basis states the following: “[...] The LSSI, of July 11, aims to incorporate into the Spanish legal system Directive 2000/31/EC of the European Parliament and of the Council, of June 8, concerning certain aspects of information society services. Its Explanatory Memorandum indicates that regarding commercial communications, it prohibits their sending by email or other equivalent electronic communication means, unless the recipient has given their consent. Subsequently, Directive 2002/58/EC of the Parliament and of the Council, of July 12, 2002, concerning the processing of personal data and the protection of privacy in the electronic communications sector was issued.”

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21/28

electronic communications (Directive on privacy and electronic communications), applicable to this matter, which was transposed into Law 32/2003, General Telecommunications Law, whose first additional provision, section one, provided the current wording for Article 21 of the LSSI. In its Recital 40, the Directive states that “Guarantees must be offered to subscribers against intrusion into their privacy through unsolicited communications for direct marketing purposes, especially through automatic dialers, faxes, and email messages, including SMS.”

Let us remember that, prior to the sending of the aforementioned email on 05/05/22, the complainant had already expressed to the financial entity WiZink their desire not to receive any further commercial communications related to “credit, savings, insurance products or similar.”

d).- on “The non-application of the law on information society services:

The LSSI applies to the following services related to the Internet when they constitute an economic or lucrative activity for the service provider in question: Electronic commerce; Online contracting; Information and advertising; and Intermediation services.

Who provides services related to the Internet? Well, according to the LSSI, they can be grouped into “Intermediation Service Providers” such as, Companies that provide Internet connection to their clients (ISPs); Data hosting service providers; Link services; Search engines or “Companies and individuals” that will be Legal entities and individuals who carry out economic activities through the Internet.

Thus, these are concepts specific to the LSSI, all of which have a definition established in the regulation itself: on one hand, both the heading of the article and the literal wording of the article refer to the recipient, who according to section d) of the Annex of the LSSI is the “natural or legal person who uses, whether or not for professional reasons, a service of the information society.” That is to say, we are not talking about all types of users, but about recipients in a legal sense. On the other hand, the Annex of the LSSI defines in its section c) the service provider as the “natural or legal person who provides a service of the information society.” And by service of the information society, section a) understands “any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient. The concept of service of the information society also includes services that are not remunerated by their recipients, insofar as they constitute an economic activity for the service provider.”

And indeed, Article 1 of the LSSI, by identifying the object of the regulation, states that “the purpose of this Law is the regulation of the legal regime of information society services and electronic contracting...”. And that is why Article 2 determines the scope of application of the LSSI, regarding the

services offered and provided by those established in Spain or offered through an establishment in Spain, but always speaking of service providers. That is to say, the LSSI applies to...

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22/28

It applies subjectively to service providers of the information society, not to any other subject. The concepts, we reiterate, are legal concepts, such as "information society services," "service provider," and "recipient," which are defined in the regulation itself.

Therefore, the criterion for determining whether a service falls within the scope of the Law on Information Society Services is whether it constitutes an economic activity for its provider. All services offered in exchange for a price or consideration are, therefore, subject to the Law.

In the case at hand, when the financial entity sends an email to one of its clients with the following message: "In September, recover money on your food delivery orders: We are writing to remind you of the list of food delivery and takeout businesses where you can recover money this September. Thanks to your card and WiZink Extra, the free benefits program associated with it, and which is part of your card contract, GLOVO: 3% discount; Maximum refund per purchase: €3; Refund threshold: €5 (...)" it is not difficult to deduce its advertising nature, in the sense that the financial entity is proposing the use of its credit card "WiZink Extra" at "GLOVO" instead of at another company that provides the same service (in competition, for example) since a 3% discount and/or a maximum refund of €3 will apply. e).- Regarding "there are no aggravating factors to adjust the sanction":

At this point, it is worth recalling that, in the document sent by the financial entity to this Agency on 15/11/22, it states verbatim the following:

"(...) Attached as DOCUMENT NUMBER 1 is a complete copy of the response sent to the <> at the email address provided in the credit card contract signed by the claimant. Note that this document includes a copy of the email sent to the claimant with the response, as well as a copy of the email sent to the claimant with the password. Attached as DOCUMENT NUMBER 2 is a copy of the justification for having sent this response by email with acknowledgment of receipt.

And in the document marked by the financial entity as "DOCUMENT NUMBER 2" sent to this Agency, as we have indicated, on 15/11/22, the following can be read verbatim:

"Recover Money with WiZink Extra"

For your purchases with your WiZink at the businesses participating in your card's benefits program and recover money

"DIA"

"PC Componentes"

"GLOVO"...

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23/28

In each purchase you make at these businesses, you accumulate a % of your spending, and when the sum of those % reaches a specific amount, which we call a threshold and is different for each business, we will refund it to your card.

Keep in mind that some businesses do not have a threshold, so, in each purchase, we will refund directly to your card the % of the spending.

<>

Do you want to enjoy WiZink Extra now?

If you are not a WiZink customer <> you can choose the best card that suits your needs. Apply online in just 5 minutes.

<>

“To this Party, everyone is invited”

Let us remember that as an aggravating factor, Section b) of Article 40 was applied, that is, the period during which the infringement has been committed, considering that the claimant notified the WiZink entity on 05/05/22 of their wish to no longer receive advertising emails and it has been confirmed that the entity continued to send at least two advertising emails 2 and 6 months after having requested "no more emails" and that the financial entity acknowledged receipt of their request.

f).- Regarding "the invocation of the prescription of the infringement"

Article 45 of the LSSI establishes the following regarding "Prescription":

Very serious infringements shall prescribe after three years, serious infringements after two years, and minor infringements after six months; sanctions imposed for very serious offenses shall prescribe after three years, those imposed for serious offenses after two years, and those imposed for minor offenses after one year.

This Agency attributes to the financial entity an infringement classified as minor in accordance with the provisions of Article 38.4.d) of the LSSI, which qualifies as such "the sending of commercial communications by email or other equivalent electronic communication means when such communications do not comply with the requirements established in Article 21 and do not constitute a serious infringement."

The chronology of the events was as follows:

On 05/05/22, the claimant sent a communication to the financial entity requesting that they no longer send commercial communications.

On 08/09/22, the claimant received an email in their inbox, which as we have had the opportunity to see, contained an advertising, commercial, or promotional message.

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24/28

Dated 09/09/22, the claimant submits a complaint to this Agency, reporting the indicated facts, and,

Dated 23/02/23, the financial entity receives notification of the initiation of file PS/055/2023, which refers to the indicated facts.

Well, without taking into account the advertising email received on 03/11/22 (provided by the entity) and only considering the advertising email submitted by the claimant, it can be deduced with a simple calculation that since the infringement was committed on 08/09/22 until the entity receives notification of the initiation of the file on 23/02/23, only 5 months and 15 days have passed, so in this case, it is not possible to invoke the statute of limitations for the infringement.

III.-

Regarding the sending of emails with advertising messages after having previously opposed it:

As we indicated earlier, the LSSI defines, in point f) of its Annex, "commercial communications" as:

"Any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity.

For the purposes of this Law, data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, will not be considered commercial communication, nor communications related to the goods, services, or image offered when they are prepared by a third party and without economic consideration.

Therefore, it is evident that the emails sent by the entity WIZINK to the claimant on 08/09/22 and 03/11/22 (the latter email provided by the entity itself), after the claimant requested "no further advertising" on 05/05/22, contained an eminently advertising, commercial, or promotional nature, as it may be viewed, for the purposes of the LSSI and therefore violated what is established in this regulation.

IV

Classification of the possible infringement committed

Article 21 of the LSSI states the following:



“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the customer.

In any case, the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications directed to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

V.-

#### Proposal for Sanction

Therefore, in accordance with the evidence available at this time, and without prejudice to what results from the instruction, the facts presented could constitute a violation of Article 21 of the LSSI by the entity being complained about for sending an advertising email after opposing the receipt of electronic communications of this type.

The aforementioned infringement is classified as “minor” in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement.”

According to what is established in Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

In accordance with the indicated provisions, and without prejudice to what results from the instruction of the procedure, for the purposes of determining the amount of the sanction to be imposed in this case, it is considered appropriate to grade the sanction to be imposed according to the following aggravating criteria established in Article 40 of the LSSI:

-

Section b): Time period during which the infringement has been committed, considering that the complainant notified the entity WiZink on 05/05/22 of their wish not to receive further advertising emails and it has been confirmed that the entity continued to send them, at least on two more occasions, on 08/09/22 and 03/11/22 (the latter email provided by the entity being complained about).

In light of the above, the following is issued,

#### PROPOSAL FOR RESOLUTION

FIRST: That the Director of the Spanish Agency for Data Protection sanctions the entity WIZINK BANK, S.A. with CIF: A81831067, for infringement of the

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26/28

Article 21 of the LSSI, classified as "minor" in Article 38.4.d) of said regulation, for sending advertising emails after opposing the receipt of electronic communications of this type, with a penalty of 5,000 euros (five thousand euros).

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, you are informed that you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed penalty, which will entail a reduction of 20% of the amount. With the application of this reduction, the penalty would be set at 4,000 euros (four thousand euros) and its payment will imply the termination of the procedure.

The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the penalty. Should you choose to proceed with the

voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, you must make the payment by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the penalty amount. Additionally, you must send the proof of payment to the General Sub-Directorate of Inspection to proceed with closing the file.

By virtue of this, you are notified of the above, and the procedure is brought to your attention so that within TEN DAYS you may present any arguments you consider necessary in your defense and submit the documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

José Pablo Lozoya Martín.

THE INSTRUCTOR OF THE PROCEDURE

ANNEX

List of documents in the Procedure PS/0055/2023, the list of documents in the procedure is notified so that you can obtain copies of those you deem appropriate:

1. Complaint and documentation
2. Request and Reports.
3. Agreement to initiate the sanctioning procedure.
4. Allegations to the initiation agreement and attached documents.

>>

SECOND: On April 27, 2023, the respondent has proceeded to pay the penalty in the amount of 4,000 euros using the reduction provided in the previously transcribed resolution proposal.

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27/28

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the penalty, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate penalty."

2. When the penalty is solely pecuniary or when a pecuniary penalty and another non-pecuniary penalty can be imposed but the impropriety of the latter has been justified, voluntary payment by the alleged offender, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the penalty is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed penalty, which are cumulative. The aforementioned reductions must be specified in the notification of initiation.

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28/28

of the procedure and its effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction.

The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202210721, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to WIZINK BANK, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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